

Court No. - 39

Case :- WRIT - C No. - 50541 of 2014

Petitioner :- Gufran

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashish Kumar Singh

Counsel for Respondent :- C.S.C.,Chandan Agrawal

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent no.1 and 3 and Sri Vishal Mittal, holding brief of Sri Chandan Agrawal, who has accepted notice on behalf of the respondent no.2 corporation.

Petitioner has approached this Court challenging the recovery proceeding initiated by the respondent corporation for recovery of the electricity charges.

Learned counsel for the petitioner without disputing the liability at the outset submits that since he is under financial crisis, he may be permitted to deposit the outstanding electricity dues in instalments.

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides that the officers not below the rank of Executive Engineer are empowered with the power to extend the facility of instalments to the consumer, who are in financial distress. The petitioner may approach the relevant authorities alongwith application in this regard.

In such circumstances, this petition stands disposed of with liberty to the petitioner of making application before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005, within a period of one week from today and in case, any such application is made, the authority concerned shall proceed to consider and decide the same by means of a reasoned and speaking order, in accordance with law, within a further period of three weeks from the date of making of the application.

For a period of four weeks from today or till the decision on the application made by the petitioner, whichever is earlier, no coercive process shall be adopted against the petitioner in pursuance to the recovery proceeding.

Order Date :- 18.9.2014

Anil